

Court No. - 32

Case :- WRIT - C No. - 23917 of 2018

Petitioner :- Merino Industries Limited

Respondent :- Paschimanchal Vidyut Vitran
Nigam Ltd. And Another

Counsel for Petitioner :- Kunal Ravi Singh,
Manjari Singh

Counsel for Respondent :- Chandan Agarwal

Hon'ble Shashi Kant Gupta,J.

Hon'ble Rajiv Gupta,J.

Learned counsel for the respondents prays for and is granted two weeks time for seeking instructions in the matter.

List the matter on 2nd August, 2018.

Order Date :- 17.7.2018

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Court No. - 32

Case :- WRIT - C No. - 23917 of 2018

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Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And
Another

Counsel for Petitioner :- Kunal Ravi Singh, Manjari Singh

Counsel for Respondent :- Chandan Agarwal

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

Counter affidavit filed today is taken on record.

As prayed by the learned counsel for the petitioner, two weeks' time is granted for filing rejoinder affidavit in the matter.

List thereafter.

Order Date :- 2.8.2018

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Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Kunal Ravi Singh, Manjari Singh

Counsel for Respondent :- Chandan Agarwal

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

As prayed, list the matter in the next cause list.

Order Date :- 17.9.2018

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Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Kunal Ravi Singh, Manjari Singh

Counsel for Respondent :- Chandan Agarwal

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

By means of present writ petition, petitioner has sought following reliefs:

"1. Issue a writ, order or direction in the nature of Certiorari or any other writ thereby quashing the impugned demand notice dated 24.5.2018 passed by the Respondent No. 2 (Annexure-15 of the writ petition)

2. Pass a writ in the nature of Mandamus directing the Respondents to pass a Speaking Order in terms of the provisions of the Electricity Supply Code, 2005.

3. Pass a writ in the nature of Mandamus directing the Respondents too consider and decide the Petitioner application under Regulation 7 of UPERC (Rooftop Solar PV Grid Interactive Systems Gross/ Net Metering) Regulations, 2015 available as its Units with installed capacity of 120 KW at Unit-1 and 420 W at Unit No. 2 (Annexure-12 of the writ petition)"

At the very outset, Sri Chandan Agarwal, learned counsel for the respondent stated that writ petition is not maintainable as the petitioner has alternative remedy to file appeal under Section 127 of the Electricity Supply Code, 2005 for redressal of his grievances.

Learned counsel for the petitioner has not disputed the aforesaid facts as stated by learned counsel for the respondents.

In view of aforesaid, writ petition is dismissed on the ground of alternative remedy.

Order Date :- 24.9.2018

Sanjeev